

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 368 of 2015

Nuru Miah alias Nuru

...Appellant

-Versus-

The State

...Respondent

No one appears.

...For the appellant

Mr. Rezaul Karim (Reza), D.A.G with

Mr. Md. Shahidul Islam, A.A.G with

Ms. Sharmin Hamid, A.A.G

...For the State

Heard on 14.07.2024, 03.09.2024, 20.10.2024 and
27.10.2024**Judgment delivered on 03.11.2024**

This criminal appeal under Section 410 of the Code of Criminal Procedure, 1898 is directed against the judgment and order dated 19.08.2014 passed by the Jananirapatta Bighnakri Aporadh Daman Tribunal and Special Sessions Judge, Comilla in Session Case No. 690 of 2008 arising out of Kotwali Model P.S. Case No. 06 dated 05.10.2008, G.R. No. 832 of 2008 convicting the appellant under Table 5(ka) of Section 19(1) of the মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and sentencing him to suffer rigorous imprisonment for 3(three) years.

The prosecution case, in short, is that on 05.10.2008 at 9.00 having received secret information, the informant S.I Jashim Uddin along with Constable No. 752 Bimal Chandra Pal, Naik No. 306 Khokan Hawlader, Constable No. 478 Sree Ajit Kumar Das and Constable No. 1075 Shyamol Chakraborty reached Tikkarchar Kheyaghat. At 9.30 am the accused Nuru Miah alias Nuru keeping a bag in his right hand reached there. In the presence of witnesses Md. Abdul Kader and Md. Bachchu Miah searching the plastic bag kept in his right hand recovered 35 bottles of import-prohibited Indian Recodex Cough Syrup, (100 ML) and prepared the seizure list at 9.35 am. Thereafter, S.I Jashim Uddin lodged the FIR.

P.W. 7 S.I Mazaharul Islam took up investigation of the case and during investigation, the Investigating Officer visited the place of occurrence, prepared the sketch map and index and recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898 and sent the sample of the recovered alamat for report of the chemical examiner. After completing investigation, he found prima facie truth of the allegation made against the accused in the FIR and submitted charge sheet on 22.10.2008 under Table 3(kha) of Section 19(1) of the মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০. During trial charge was framed on 17.02.2009 against the accused Nuru Miah alias Nuru under Table 5(ka) of Section 19(1) of the মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ which was read over to the accused and he pleaded not guilty to the charge and claimed to be tried following law.

During the trial, the prosecution examined 7(seven) witnesses to prove the charge against the accused. After examination of the prosecution witnesses, the accused was examined under Section 342 of the Code of Criminal Procedure, 1898 and he declined to adduce any D.W. After concluding the trial, the trial Court by impugned judgment and order convicted the accused and sentenced him as stated above against which he filed the instant appeal.

P.W. 1 S.I Jashim Uddin is the informant. He stated that on 05.10.2008 while he was discharging his duty with Kotwali Model Thana he along with his force received secret information that Indian goods would be entered through Indian Border to Tikkarchar Kheyaghat. On that day based on the GD No. 188 dated 05.10.2008 at 9.00 am, he along with the members of his force took their position. At 9.30 am when the accused along with a bag kept in his hand reached the place of occurrence, the members of the raiding party detained him and in the presence of witnesses Abdul Kader and Bachchu Member searching the bag kept in his right hand found 35 bottles of Indian Recodex. At 9.30 am he prepared the seizure list and took the signature of the witnesses on the seizure list. He also signed the seizure list. On interrogation, the accused disclosed his name as Nuru Miah alias Nuru. He along with the recovered goods came back at Thana and lodged the FIR. He proved the FIR as exhibit 1 and his

signature on the FIR as exhibit 1/1. He proved the seizure list as exhibit 2 and his signature on the seizure list as exhibit 2/1. He produced recovered alamat (2 bottles) as material exhibit I series. He identified the accused in the dock. During cross-examination, he stated that he reached at 9.00 am at the place of occurrence and the seizure list was prepared at 9.35 am. He denied the suggestion that nothing was recovered from the hand or possession of the accused.

P.W. 2 Constable No. 1075 Shyamol Chakraborty stated that on 05.10.2008 under the leadership of S.I Jasim Uddin, he went to Tikkarchar at 9.00/9.30 am. At that time, he saw that the accused Nuru Miah was detained along with a bag in his hand. In the presence of witnesses, 35 bottles of Indian Recodex were recovered and a seizure list was prepared. He denied the suggestion that the seizure list was not prepared at the place of occurrence and that 35 bottles of Indian Recodex were not recovered from the possession of the accused and that he deposed falsely.

P.W. 3 Abdul Kader is a business man of Tikkarchar. He stated that at the time of occurrence, he was bathing in the river. The police force requested him to sign the seizure list and accordingly, he signed. He proved his signature as exhibit 2/2. He did not see any goods on that day. He was declared hostile. During cross-examination on behalf of the State, he stated that he did not see the goods. He admitted that the accused and he was a resident of the same village. He denied the suggestion that in his presence, the police recovered the goods and to save the accused, he deposed falsely.

P.W. 4 Constable No. 306 Khokan Hawlader stated that on 05.10.2008 while he was discharging his duty with the Police lines, Cumilla under the leadership of S.I Jashim Uddin, he went on mobile duty. Based on the secret information, he came to know that Indian goods would enter Bangladesh from India through Tikkarchar Kheyaghat and at 9.20 am they took position at Tikkarchar Kheyaghat. One Nuru Miah keeping a bag in his hand reached the place of occurrence and searching the said plastic bag, S.I Jasim Uddin recovered the goods mentioned in the seizure list. They came back to Thana along with the accused and the

goods. During cross-examination, he stated that he went to the place of occurrence along with S.I Jasim Uddin. The accused was coming to Tikkarchar from India by boat. The accused kept the bag in his hand. The accused did not flee away. He affirmed that the Indian Recodex was recovered from the plastic bag kept in the hand of the accused. He denied the suggestion that he deposed falsely.

P.W. 5 Md. Bachchu Miah could not say the date of occurrence. He stated that about 5 years ago, he saw two persons at the place of occurrence and many people were present there. The police called him to sign and he put his thumb impression. During cross-examination, he stated that he did not make any statement to the Investigating Officer. He did not see the recovery of the goods.

P.W. 6 Constable No. 752 Bimal Chandra Pal stated that on 05.10.2008 at 9.30 am under the leadership of S.I Jasim Uddin, he was on duty at Tikkarchar Kheyaghat. On that day, a man was detained on the road and he carried a bag in his hand and they recovered 35 bottles of Recodex Syrup. The Sub-Inspector prepared the seizure list. He identified the accused in the dock. During cross-examination, he stated that he reached the P.O. at 9.30 am. He denied the suggestion that the recovery of 35 bottles of Indian Recodex Syrup from the possession of the accused is false.

P.W. 7 S.I Mazaharul Islam is the Investigating Officer. He stated that during the investigation, he visited the place of occurrence, prepared the sketch map and index and recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898. He sent 1(one) bottle of Recodex for the report of the chemical examiner who opined that codeine was found in the bottle. After completing the investigation, he found the truth of the allegation made against the accused and submitted charge sheet. He proved the sketch map and index as exhibits 3 and 4 respectively and his signature as exhibit 4/1. The report of the chemical examiner is available with the record. He proved 1(one) bottle of Recodex as material exhibit I. During cross-examination, he stated that he visited the place of occurrence. None was agreed to be the witness of the case for

which except the witnesses mentioned in the FIR no statement of other witnesses was recorded. The statements of witnesses were recorded at the place of occurrence. No case is pending against the accused. He denied the suggestion that the Recodex was not recovered from the possession of the accused.

No one appears on behalf of the appellant.

Learned Deputy Attorney General Mr. Rezaul Karim (Reza) appearing on behalf of the State submits that P.W. 1 S.I Jasim Uddin in the presence of P.W. 2 Constable Shyamol Chakraborty, P.W. 4 Constable Khokan Howlader and P.W. 6 Constable Bimal Chandra Pal recovered 35 bottles of Indian Recodex kept in the bag carried by the accused from the place of occurrence and the chemical examiner in his report opined that codeine was found in the bottle sent for the report of the chemical examiner and the prosecution proved the charge against the accused beyond all reasonable doubt and the trial Court on correct assessment and evaluation of the evidence of the prosecution witnesses legally convicted the accused. Therefore, he prayed for the dismissal of the appeal.

I have considered the submissions of the learned Deputy Attorney General, perused the evidence, impugned judgment and order passed by the trial Court and the records.

On perusal of the evidence of the prosecution witnesses, it reveals that on 05.10.2008 at about 9.00 am, while the accused Nuru Miah alias Nuru was coming from India to Tikkarchar Kheyaghat, he was arrested along with a bag allegedly kept in his hand. P.W. 3 Abdul Kader and P.W. 5 Md. Bachchu Miah are the witnesses on the seizure list. P.Ws. 3 and 5 stated that they signed the seizure list but they were not present at the time of recovery of the alleged Indian Recodex. They also affirmed that they did not find any goods. 35 bottles of Indian Recodex were allegedly recovered from the possession of the accused. One bottle of Indian Recodex was sent to the handwriting expert and 1(one) bottle of Indian Recodex was proved as material exhibit I. No explanation was given as to the disposal of the other Indian Recodex allegedly recovered from the possession of the accused.

The Investigating Officer P.W. 7 S.I Mazaharul Islam stated that the chemical examiner in his report opined that codeine was found in the bottle sent for the report of the chemical examiner but said report of the chemical examiner was not proved in the case. P.Ws. 3 and 5 did not corroborate the evidence of P.Ws. 1, 2, 4 and 6 as regards the recovery of 35 bottles of Indian Recodex from the possession of the accused. The report of the chemical examiner may be used as evidence during trial without calling him as witness in the case but the said report of the chemical examiner is required to be proved by the Investigating Officer. In the instant case, the report of the chemical examiner was not proved by the Investigating Officer. In the absence of any report from the chemical examiner, this Court cannot hold the view that the codeine was found in the bottles recovered from the possession of the accused.

In view of the above evidence, facts and circumstances of the case, findings, observation and the proposition, I am of the view that the prosecution failed to prove the charge against the accused beyond all reasonable doubt.

I find merit in the appeal.

In the result, the appeal is allowed.

The impugned judgment and order of conviction and sentence passed by the trial Court against the accused Nuru Miah alias Nuru are hereby set aside.

Send down the lower Court's records at once.